

**UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION**

Interconnection of Large Loads to the Interstate) Docket No. RM26-4-000
Transmission System)

REPLY COMMENTS OF THE INDICATED PJM TRANSMISSION OWNERS

The Indicated PJM Transmission Owners¹ respectfully submit the following reply comments in response to initial comments filed in the above-captioned proceeding, pursuant to the Notice Inviting Comments issued by the Federal Energy Regulatory Commission (“Commission”) on October 27, 2025 regarding the Secretary of Energy’s proposed advance notice of proposed rulemaking (“ANOPR”) requested under Section 403 of the Department of Energy Reorganization Act.²

I. EXECUTIVE SUMMARY

Over 150 sets of comments were filed in response to the ANOPR, with commenters representing a wide variety of interests, including data center operators, state regulators and other government officials, federal legislators, transmission owners, generators, RTOs/ISOs, end-use customers other than data centers, consumer and environmental advocates, and interested

¹ This filing is prepared on behalf of the following PJM Interconnection, L.L.C. (“PJM”) Transmission Owners: Duke Energy Corporation on behalf of its affiliates Duke Energy Ohio, Inc., Duke Energy Kentucky, Inc., and Duke Energy Business Services LLC; Exelon Corporation on behalf of its affiliates Atlantic City Electric Company, Baltimore Gas and Electric Company, Commonwealth Edison Company, Commonwealth Edison Company of Indiana, Inc., Delmarva Power & Light Company, PECO Energy Company (“PECO”), and Potomac Electric Power Company; FirstEnergy Service Company, on behalf of its affiliates American Transmission Systems, Incorporated, Jersey Central Power & Light Company, Mid-Atlantic Interstate Transmission LLC, The Potomac Edison Company, Monongahela Power Company, Keystone Appalachian Transmission Company, and Trans-Allegheny Interstate Line Company; PPL Electric Utilities Corporation; and Rockland Electric Company (together, the “Indicated PJM TOs”). Certain of the Indicated PJM TOs are separately submitting company specific reply comments and participating in other sets of reply comments, thereby, the Commission should consider this submission alongside and in addition to the other comments submitted by the companies participating herein.

² 42 U.S.C. § 7173.

individuals. Both the scope and degree of interest speak to the importance of this proceeding in addressing the goals articulated by the ANOPR to facilitate interconnecting large load customers, particularly data centers, to the grid in a “timely, orderly, and non-discriminatory manner.”³ This will require the Commission to move not only quickly, but carefully. Although commenters are largely united in their desire to see the ANOPR’s goals addressed, the comments reflect a wide range of views as to how best to do so. For instance, many commenters point out that the area of load interconnection implicates matters of both federal and state jurisdiction, and caution the Commission to proceed in a manner that respects state jurisdiction over matters involving retail electric service and the regulation of local distribution facilities.⁴ Other areas where commenters express divergent views include how best to define what constitutes a large load customer for purposes of any Commission-adopted procedures and how best to allocate the costs of large load-driven network transmission upgrades.

All of this suggests that the goals of the ANOPR will best be served by the Commission developing an appropriately targeted rule that does not disturb the significant work already underway in many states and regions to energize large loads, including data centers. Going beyond this remit is more likely to result in extended litigation and ongoing disputes, to the detriment of speed, efficiency and cost-effectiveness. In furtherance of this approach, the Indicated PJM TOs offer reply comments on several issues addressed in the initial comments, including:

- The Commission should decline to entertain issues that go beyond the scope of the ANOPR. Issues such as the appropriate division between regional and local transmission planning have been thoroughly debated before the Commission in prior orders and other proceedings and should not be revived here.
- To the extent the Commission asserts jurisdiction over large load interconnections, it should adopt a sufficiently narrow definition of “large load customer” limited to large

³ Secretary of Energy’s Letter to the Commissioners of FERC, at 1 (Oct. 23, 2025) (“Secretary’s Letter”).

⁴ As discussed in our initial comments, the Indicated PJM TOs share certain of these jurisdictional concerns.

(200 MW or greater) data center customers. It is those customers that are primarily driving load increases. As discussed below, rationales supporting the proposed 20 MW threshold can be addressed through alternative means without widening the application of this rule to customers that will likely be adversely affected by it.

- Although a number of commenters argue in favor of directly assigning the costs of transmission network upgrades to data center customers, the Commission should continue to apply its policy in favor of rolled-in rate treatment for network transmission upgrades driven by load additions, including large data center loads. Doing so may best reduce litigation, and is most consistent with cost causation principles. Such an approach ultimately favors affordability and best ensures long-term cost-effective reliability for all customers.
- The Commission should decline to provide large load customers an option to build. Large load customers are distinguishable from generators, and in any case, the experience with implementing option to build in the context of generator interconnection strongly suggests that there will be no meaningful cost savings or efficiency gains as a result of providing such an option to large load customers.

II. REPLY COMMENTS

A. The Commission Should Decline to Entertain Issues Beyond the Scope of the ANOPR.

In the initial comments, a number of parties raised issues that are clearly beyond the scope of the proposed ANOPR. The Commission, however, must maintain its focus on timing and need to adopt rules within an appropriate scope. It is critical that the Commission adhere to the scope of the ANOPR (instead of expanding it) so that the Commission can achieve the stated goals of the ANOPR and avoid unintended adverse consequences to other customers. In particular, if the Commission wishes to promote timely interconnections to advance artificial intelligence (“AI”) innovation, it should limit its inquiry and avoid expanding the scope of this proceeding to address issues and concerns that are not sufficiently related to achieving that goal, such as those discussed below. Failure to do so will result in a larger, more confused record, a risk of increased litigation, and create more hurdles for both transmission providers and data center customers.⁵

⁵ The recent complaint filed by PJM’s Independent Market Monitor (“IMM”), although submitted by the IMM in this docket, is likewise beyond the scope of the ANOPR and should not be addressed in this

Among the examples of comments that improperly seek to expand the scope of the ANOPR, LS Power Development, LLC (“LS Power”), argues that transmission upgrades above 100kV should be regionally planned and that the Commission should allow and encourage competition for the construction of large load-related infrastructure.⁶ LS Power also requests that the Commission adopt rules similar to PJM’s provisions concerning transmission-level Designated Entity Agreements (“DEAs”) to govern large load interconnections.⁷ LS Power’s requests are both well beyond the scope of the ANOPR and without merit.

The ANOPR and letter accompanying the ANOPR make no mention of regional planning or competition associated with large load interconnections other than a brief introductory reference to transmission planning under Order Nos. 888, 890, 1000, and 1920.⁸ Issues regarding the appropriate scope of regional versus local planning and competition have been comprehensively addressed and decided by the Commission in those prior orders. There is no reason to re-open those issues now, and certainly not in this proceeding, where meeting the goals of the ANOPR will require the Commission to move quickly and in a targeted manner. In fact, were those issues to be re-opened, the Commission would need to grapple with the growing body of evidence that Order No. 1000 competitive transmission processes are not having the intended result. Competitive solicitations should not be expanded into large load interconnection processes if the interest is in supporting timely, cost-effective, and reliable infrastructure development.⁹ Not only

proceeding. *See* Filing of the Independent Market Monitor for PJM Interconnection, L.L.C., Docket No. RM26-4-000 (Nov. 25, 2025).

⁶ Comments of LS Power, Docket No. RM26-4-000, at 8, 13 (Nov. 21, 2025).

⁷ *Id.* at 6-7.

⁸ ANOPR at P 6.

⁹ *See e.g.*, Second Supplemental Comments of Developers Advocating Transmission Advancements, Docket Nos. RM21-17 and AD22-8 (Feb. 12, 2025).

would introducing Order No. 1000 solicitation issues into this docket complicate the proceeding, any resulting planning and infrastructure development process would impose further delays to interconnecting large loads given the time requirement to run solicitation processes and to resolve any ensuing disputes.

LS Power's request also highlights serious jurisdictional issues. Large load interconnections concerning end-use customers will, more often than not, require upgrades to local distribution (not just transmission) facilities. The regulation of local distribution facilities is reserved to the states,¹⁰ and thus, the Commission has no authority to impose federal planning requirements for local distribution upgrades. Nothing in the ANOPR indicates an intent to regulate local distribution-related upgrades or distribution rates.¹¹ Nevertheless, in order to avoid further concerns, and potential litigation, regarding jurisdictional boundaries, the Commission should decline to accept LS Power's invitation to reconsider fundamental planning issues in the context of this rulemaking. Doing so is unnecessary and would be inimical to the ANOPR's stated goals.

Likewise, there is no merit to LS Power's suggestion that the Commission should incorporate provisions from the PJM DEAs "related to cost and schedule" into the large load interconnection context.¹² DEAs are not interconnection agreements. Rather, in PJM, they are contracts to ensure developers take on binding obligations to construct projects selected for inclusion in the PJM Regional Transmission Expansion Plan ("RTEP") through a competitive window. There is no logical overlap between DEAs and potential large load interconnection agreements, and thus no reason for the Commission to complicate the record by considering issues regarding DEAs in this proceeding.

¹⁰ 16 U.S.C. § 824(b)(1).

¹¹ ANOPR at P 18.

¹² LS Power at 7.

Additionally, the Office of the Ohio Consumers' Counsel ("OCC") asserts that, as part of the ANOPR, the Commission should require that public utilities and RTOs provide public posting of (1) all interconnection requests 20 MW and above; (2) cost responsibility determinations and any resulting upgrades; and (3) annual reporting on consumer cost impacts of large load interconnections, associated transmission expansions, and impact on capacity market rates.¹³ This request too is beyond the scope of the ANOPR and unnecessary.

As open access service providers, transmission owners such as the Indicated PJM TOs have a duty to build transmission upgrades to meet the demands of their customers and to plan such construction in a transparent planning process pursuant to Order Nos. 888, 890, 1000, and 1920.¹⁴ For stakeholders in PJM, the Commission has consistently found that the PJM and transmission owner planning practices are sufficient to meet the requirements of those orders, including requirements designed to promote transparency.¹⁵ Moreover, much of the transmission information that OCC requests (*e.g.*, costs of transmission upgrades) is already provided through

¹³ Comments of OCC, Docket No. RM26-4-000, at 3-4 (Nov. 21, 2025).

¹⁴ *Promoting Wholesale Competition Through Open Access Non-Discriminatory Transmission Servs. by Pub. Utils.; Recovery of Stranded Costs by Pub. Utils. and Transmitting Utils.*, Order No. 888, FERC Stats. & Regs. ¶ 31,036 (1996) (cross-referenced at 75 FERC ¶ 61,080), *on reh'g*, Order No. 888-A, FERC Stats. & Regs. ¶ 31,048 (cross-referenced at 78 FERC ¶ 61,220), *on reh'g*, Order No. 888-B, 81 FERC ¶ 61,248 (1997), *on reh'g*, Order No. 888-C, 82 FERC ¶ 61,046 (1998), *aff'd in relevant part sub nom.*, *Transmission Access Pol'y Study Grp., v. FERC*, 225 F.3d 667 (D.C. Cir. 2000), *aff'd sub nom.*, *N.Y. v. FERC*, 535 U.S. 1 (2002).; *Preventing Undue Discrimination & Preference in Transmission Serv.*, Order No. 890, 118 FERC ¶ 61,119, *order on reh'g*, Order No. 890-A, 121 FERC ¶ 61,297 (2007), *order on reh'g*, Order No. 890-B, 123 FERC ¶ 61,299 (2008), *order on reh'g*, Order No. 890-C, 126 FERC ¶ 61,228, *order on clarification*, Order No. 890-D, 129 FERC ¶ 61,126 (2009); *Transmission Plan. & Cost Allocation by Transmission Owning & Operating Pub. Utils.*, Order No. 1000, 136 FERC ¶ 61,051 (2011), *order on reh'g*, Order No. 1000-A, 139 FERC ¶ 61,132, *order on reh'g & clarification*, Order No. 1000-B, 141 FERC ¶ 61,044 (2012), *aff'd sub. nom. S.C. Pub. Serv. Auth. v. FERC*, 762 F.3d 41 (D.C. Cir. 2014); *Bldg. for the Future Through Elec. Reg'l Transmission Planning & Cost Allocation*, Order No. 1920, 89 FR 49280 (June 11, 2024), 187 FERC ¶ 61,068, *order on reh'g*, Order No. 1920-A, 89 FR 97174 (Dec. 6, 2024), 189 FERC ¶ 61,126 (2024), *order on reh'g*, Order No. 1920-B, 191 FERC ¶ 61,026 (2025).

¹⁵ Order No. 890 at PP 207-213; *Monongahela Power Co.*, 164 FERC ¶ 61,217 (2018); *PJM Interconnection, L.L.C.*, 172 FERC ¶ 61,136, *order on reh'g*, 173 FERC ¶ 61,225 (2020); *PJM Interconnection, L.L.C.*, 176 FERC ¶ 61,053 (2021).

publicly available sources. For instance, information regarding project status and cost estimates for transmission upgrades are already posted publicly on PJM’s website.¹⁶ There is no good reason to expand the scope of the proposed ANOPR to create yet another forum to address and re-litigate the amount of transmission planning project and cost information provided to stakeholders.

Granting OCC’s request could also raise jurisdictional concerns. Large load interconnections invariably involve requests for retail service, which are governed by State rules, including rules governing the type and amount of information that interconnecting utilities can make public.¹⁷ The Commission should avoid potential conflicts with state-jurisdictional retail service provisions and the resulting litigation and uncertainty that such conflicts will likely entail. Potential jurisdictional conflicts here are particularly likely if the Commission retains a 20 MW threshold. With a 20 MW threshold, “cost responsibility determinations and any resulting upgrades” will not be limited to interstate transmission facilities—they will almost certainly involve local distribution facilities subject to state jurisdiction. All the more reason the Commission should avoid imposing broad reporting requirements of the sort requested by OCC.

The Data Center Coalition (“DCC”) argues that the Commission should require that RTOs and other transmission providers adopt automation and AI tools to align study timelines with needed urgency.¹⁸ The Indicated PJM TOs appreciate the need to facilitate data center speed-to-power objectives, and to use all available tools to facilitate efficiency while ensuring safety, reliability, and good utility practice. Where possible, these tools include using automation to speed study processes. The Indicated PJM TOs also anticipate that AI could eventually play an important

¹⁶ PJM, *Project Status & Cost Allocation*, <https://www.pjm.com/planning/m/project-construction> (last visited, Dec. 4, 2025).

¹⁷ See *e.g.*, 52 Pa. Code § 54.8. Privacy of customer information.

¹⁸ DCC Comments, Docket No. RM26-4-000, at 11 (Nov. 21, 2025).

role in interconnection studies as well, but at present it is not sufficiently advanced to meaningfully accelerate planning and load analyses. Regardless, the Commission should decline to mandate study practices of utilities, RTOs, and other transmission providers at the detailed level of dictating the use of particular tools or programs. Such rules would be difficult to define and enforce and, by prohibiting flexibility for transmission providers to use the right tool for each specific job, this could end up undermining rather than enhancing efficiency. In prior proceedings, the Commission has declined to adopt similar proposals;¹⁹ it should do likewise here.

Similarly, a few parties suggest that the Commission should require that grid-enhancing technologies (“GETs”) and advanced transmission technologies (“ATTs”) be included in building infrastructure associated with large load interconnections.²⁰ As with automation and AI tools, transmission providers already look for opportunities to use GETs and ATTs. However, such technologies are not always useful or appropriate, and the benefits of such technologies depend on a number of factors, including the specific technology employed and its electrical location.²¹

¹⁹ *Improvements to Generator Interconnection Procs. and Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at P 9 (2023) (“[W]e decline to adopt the NOPR proposals pertaining to informational interconnection studies, shared network upgrades, the optional resource solicitation study, and the alternative transmission technologies annual report.”).

²⁰ See Joint Comments of the Industrial Energy Consumers of America, the American Forest & Paper Association, the PJM Industrial Customer Coalition, and the Coalition of MISO Transmission Customers, Docket No. RM26-4-000, at 27-28 (Nov. 21, 2025) (“Industrial Customer Organizations”); Joint Comments of Clean Air Task Force, Inc., Coalition for Affordable Utility Services and Energy Efficiency in Pennsylvania; Earthjustice; Environmental Defense Fund; Montana Environmental Information Center; Natural Resources Defense Council, Sustainable FERC Project; Sierra Club; and Southern Environmental Law Center, at 6-7 & n.54 (Nov. 21, 2025) (“Public Interest Organizations”); The Working for Advanced Transmission Technologies Coalition and the Advancing Modern Powerlines Coalition, Docket No. RM26-4-000, at 5-9 (Nov. 21, 2025).

²¹ See, e.g., North American Electric Reliability Corporation, *Grid-Enhancing Technologies, Dynamic Line Ratings: Enhancing Reliability in the Modern Grid*, at 2 (Oct. 15, 2024), https://www.nerc.com/contentassets/6517cd1003684551a8f3150b05148d7a/reliability-insights_grid-enhancing-technologies-15oct24.pdf (“TOs must consider stability limitations rather than just thermal limitations. Simply increasing a facility rating may not provide the desired benefits, and the implementation of [Dynamic Line Ratings] will not provide any reliability benefits.”).

Transmission owners with relevant knowledge of their system conditions should be permitted to decide whether and where these technologies are employed. And their utility and purpose are remote from the primary goals of the ANOPR. Thus, the Commission should decline requests to mandate the evaluation and use of GETs and ATTs. The Commission should not layer such specific requirements on transmission providers in this proceeding, as doing so will increase the burdens and complexity of compliance with any final rule and likely delay its implementation.

Finally, a number of parties ask the Commission to consider other issues that are beyond the scope of the ANOPR, such as Order No. 1920 and long-term transmission planning,²² and the need to improve load forecasting practices.²³ These parties offer no evidence to suggest their concerns are even casually related to the goals of the ANOPR. Accordingly, the Commission should not let such issues distract it from the task at hand. Expanding this proceeding to include these requests will jeopardize any attempt to adopt meaningful and appropriately targeted rules in a reasonable timeframe in order to promote the speed-to-power needs of data centers.

B. The Commission Should Limit the Definition of Large Load Customers to Data Centers at Least 200 MW in Size.

The Indicated PJM TOs continue to have reservations regarding the Commission's jurisdiction over large load interconnections and whether rules adopted by the Commission would intrude on state authority over retail service to end-use customers, regardless of how the

²² Joint Comments of Southern Environmental Law Center, Appalachian Voices, North Carolina Sustainable Energy Association, South Carolina Coastal Conservation League, and Southern Alliance for Clean Energy, at 55-56 (Nov. 21, 2025) ("Southeast Public Interest Organizations") (indicating that the Commission should also ensure rigorous compliance with Order No. 1920).

²³ See, e.g., Southeast Public Interest Organizations at 56-57 ("While a standardized large load interconnection process that involves strict financial commitments may help to discipline large load speculation, the Commission should also establish load forecasting requirements that allow transmission providers to mitigate the uncertainty in large load demand forecasting for large loads to ensure just and reasonable rates.").

Commission ultimately defines large-load customers. Nevertheless, if the Commission decides to assert jurisdiction over large load interconnections and to adopt standardized large load interconnection procedures, it is in the best interest of the Commission and all stakeholders to adopt a reasonably narrow definition that confines the application of the rules to the types of customers driving the ANOPR: large data center loads. Many other commenters agree that a minimum threshold of 20 MW is too low, arbitrary, vague, or could sweep in large load customers not intended to be within the scope of the ANOPR.²⁴ These commenters propose alternative thresholds ranging from 30 MW to 300 MW,²⁵ and/or argue that any MW-based threshold should account not only for the large load's size but also its function.²⁶

As the Indicated PJM TOs explained in their initial comments, the Commission should focus this rulemaking on data center customers that are driving the largest load additions and contributing to network upgrades, and not adopt a threshold so low that it undermines efficiency

²⁴ See, e.g., Comments of American Transmission Company LLC, Docket No. RM26-4-000, at 8-10 (Nov. 21, 2025); Comments of New York Transmission Owners, Docket No. RM26-4-000, at 12-14 (Nov. 21, 2025) (“New York TOs”); Comments of Midcontinent Independent System Operator, Inc. Transmission Owners, Docket No. RM26-4-000, at 20-22 (Nov. 21, 2025) (“MISO TOs”); Comments of American Clean Power Association, Docket No. RM26-4-000, at 3-4 (Nov. 21, 2025); Industrial Customer Organizations at 6, 25; Comments of Meta Platforms, Inc., Docket No. RM26-4-000, at 4 (Nov. 21, 2025).

²⁵ See, e.g., Comments of Public Service and Gas Company, PSEG Power LLC, and PSEG Energy Resources & Trade LLC, Docket No. RM26-4-000, at 25-26 (Nov. 21, 2025); Comments of Old Dominion Electric Cooperative, Docket No. RM26-4-000, at 4-5 (Nov. 21, 2025); Comments of Clean Energy Buyers Association, Docket No. RM26-4-000, at 5 (Nov. 21, 2025); Comments of Edison Electric Institute, Docket No. RM26-4-000, at 5-8 (Nov. 21, 2025); Comments of Wisconsin Electric Power Company and Wisconsin Public Service Corporation, Docket No. RM26-4-000, at 15-16 (Nov. 21, 2025) (“WEC Companies”); Comments of The Public Staff – North Carolina Public Utilities Commission, Docket No. RM26-4-000, at 6-7 (Nov. 21, 2025) (“NC Public Staff”).

²⁶ See Industrial Customer Organizations at 26-27 (explaining that a 20 MW limit would capture a significant number of manufacturing entities and other industrial and institutional organization that do not have speed-to-market and scale demands); Comments of Steel Manufacturers Association, Docket No. RM26-4-000, at 2 (Nov. 21, 2025) (explaining that electric arc furnace steelmaking required a significant, high-demand load, averaging between 40-100 MW, on the electrical grid); see also Comments of the Electricity Consumers Resource Council, Docket No. RM26-4-000, at 5 (Nov. 21, 2025) (“ELCON”) (contending that establishing a brightline MW threshold to determine eligibility of certain large load customers fails to capture the unique characteristics of new large loads).

and adversely impacts traditional industrial and commercial load customers.²⁷ Adopting a MW threshold significantly higher than 20 MW, as proposed by the Indicated PJM TOs and a number of other commenters, will also help keep any final rule reasonably targeted and may help reduce litigation.

Some commenters, however, support the ANOPR's tentative proposal to apply standardized interconnection procedures and agreements to loads of 20 MW or more.²⁸ The Indicated PJM TOs submit that the reasons presented by these commenters for adopting a 20 MW threshold can be sufficiently addressed while also preserving a reasonably narrow definition (at a substantially higher level than 20 MW) of large load customers. First, certain commenters indicate that a 20 MW or similarly low threshold should be tied to existing state or retail mechanisms.²⁹ While a lower threshold may be appropriate for certain state retail tariffs or customer-specific agreements, this does not mean that any rules adopted by the Commission need to be as expansive. Retail customer protections and related provisions may be appropriate for a broader range of customers depending on specific state or customer characteristics. But if the Commission decides to assert jurisdiction over large load interconnections, any generic rules adopted by the Commission should focus on the large load data center customers primarily driving the load increases. Applying generic rules to a broad swathe of large load customers will likely end up making load interconnections more inefficient, both for data center customers as well as traditional

²⁷ Comments of the Indicated PJM TOs, Docket No. RM26-4-000, at 2-4 (Nov. 21, 2025).

²⁸ See, e.g., OCC at 8; Comments of the California Independent System Operator Corporation at 5-6 (Nov. 21, 2025) ("CAISO"); Joint Comments of the Pennsylvania Office of Consumer Advocate and Delaware Division of the Public Advocate at 16-17 (Nov. 21, 2025) ("PA and DE Advocates"); Electricity Customer Alliance at 18 (Nov. 21, 2025) ("ECA").

²⁹ OCC at 4 (indicating that FERC's rule must not undercut or preempt state efforts to manage load growth through retail tariffs and rate design); Public Interest Organizations at 16 (explaining that many state utility commissions have either already approved or are in the process of establishing large load tariffs intended to insulate other customers from inappropriately bearing the costs utilities incur to interconnect large loads).

industrial and commercial customers that often have very different technical, financial, and regulatory needs.

Other commenters argue that a higher threshold could lead to gamesmanship, where loads are encouraged to develop projects just above or just below the threshold to qualify for a state-run or federally-run interconnection queue, depending on which is viewed as preferable, or to create multiple smaller facilities so that each is below the applicable threshold.³⁰ While the Indicated PJM TOs agree the Commission should structure any applicability threshold associated with a final rule in such a way to prevent gamesmanship, this does not mean that the adopted threshold needs to be relaxed to do so. For instance, provisions to prevent gaming should be crafted to constrain a strategy that would entail large load customers splitting a larger facility into multiple, smaller facilities simply to avoid being subject to the large load interconnection queue requirements (but without inhibiting natural development behaviors at geographically proximate sites).

NRG Energy, Inc. (“NRG Energy”) proposes that the Commission avoid adopting an arbitrary MW-based jurisdictional threshold.³¹ NRG Energy suggests that the Commission alternatively adopt a rebuttable presumption that any load interconnection at 230 kV or above is a large load interconnection subject to standardized procedures.³² Although load served at 230 kV or above is *likely* to be relatively large in size, this proposal is still overly expansive because it would encompass traditional industrial and commercial loads and cooperatives and result in the

³⁰ See, e.g., Comments of Virginia Corporation Commission, Docket No. RM26-4-000, at 3, 8 (Nov. 25, 2025).

³¹ Comments of NRG Energy, Docket No. RM26-4-000, at 3, 14-15 (Nov. 20, 2025).

³² *Id.* at 9-10.

adverse consequences highlighted in the Indicated PJM TOs’ and other parties’ initial comments, to the detriment of other key Administration priorities such as re-shoring manufacturing.

C. The Commission Should Retain Rolled-In Rate Treatment for Network Transmission Upgrades.

A number of commenters indicate support for direct assignment of network transmission upgrade costs to large load customers, claiming that doing so best comports with cost causation principles.³³ Their assertions are wrong and contrary to decades of Commission precedent governing transmission pricing policy.³⁴ “[I]n determining permissible prices for transmission services, the Commission treats each transmission customer not as using a single transmission path but rather as using the entire . . . system[,]” which it refers to as “rolled-in” pricing.³⁵ The Commission, through its findings, has sustained applicability of its rolled-in rate treatment policy and avoided shortsighted attempts to balkanize the electric system into circuit-by-circuit cost allocation classes.³⁶ Dividing up the network, particularly between individual load customers of

³³ See, e.g., Comments of Maryland Public Service Commission, Docket No. RM26-4-000, at 11 (Nov. 21, 2025); Comments of Buckeye Power, Inc., Docket No. RM26-4-000, at 18-20 (Nov. 21, 2025) (“Buckeye Power”); Comments of the Office of the Illinois Attorney General, Docket No. RM26-4-000, at 11-12 (Nov. 21, 2025); ELCON at 8; PA and DE Advocates at 24-27; ECA at 22.

³⁴ See *Otter Tail Power Co.*, Opinion No. 93, 12 FERC ¶ 61,169, at 61,420 (1980); see also *Idaho Power Co.*, Opinion No. 13, 3 FERC ¶ 61,108 (1978); *Utah Power & Light Co.*, Opinion No. 220, 27 FERC ¶ 61,258, *reh’g denied*, 28 FERC ¶ 61,088 (1984), *aff’d sub nom. Sierra Pac. Power Co. v. FERC*, 793 F.2d 1086 (9th Cir. 1986); *Niagara Mohawk Power Corp.*, Opinion No. 296, 42 FERC ¶ 61,143 (1988); *Mansfield Mun. Elec. Dep’t v. New England Power Co.*, 94 FERC ¶ 63,023, *aff’d*, Opinion No. 454, 97 FERC ¶ 61,134 (2001), *reh’g denied*, Opinion No. 454-A, 98 FERC ¶ 61,115 (2002). *S. Cal. Edison Co.*, 100 FERC ¶ 61,219, at P 18 (2002); *Am. Elec. Power Serv. Corp.*, 101 FERC ¶ 61,211, 61,910 (2002) (affirming earlier decision to roll in costs associated with transmission facilities, without discussing Order No. 888, and noting that “historically, the rolled-in method of transmission cost allocation has been favored”); *Allegheny Power*, 122 FERC ¶ 61,160 at P 29 (2008); *Pinnacle West Capital Corp.*, 131 FERC ¶ 61,143, at P 42 (2010); *Buckeye Power, Inc. v. Am. Transmission Sys. Inc.*, Opinion No. 533, 148 FERC ¶ 61,174 (2014); *Duke Energy Carolinas, LLC*, 168 FERC ¶ 61,190, at P 18 (2019) (citing *Ne. Tex. Elec. Coop.*, 108 FERC ¶ 61,084 (2004)).

³⁵ *Northern States Power Co. v. FERC*, 30 F.3d 177, 179 (D.C. Cir. 1994).

³⁶ See *The Potomac Edison Co.*, 20 FERC ¶ 63,060 (1982), *aff’d*, Opinion No. 163, 23 FERC ¶ 61,106 (1983); *Utah Power & Light Co.*, Opinion No. 220, 27 FERC ¶ 61,258, *reh’g denied*, 28 FERC ¶ 61,088 (1984), *aff’d sub nom. Sierra Pac. Power Co. v. FERC*, 793 F.2d 1086 (9th Cir. 1986) (“FERC favors

different use types and sizes, risks creating a patchwork of individual cost allocation assignments that obscures³⁷ the cumulative and individual benefits of an integrated transmission system.³⁸

The notion that smaller load customers will not benefit from the network upgrades driven by large load data center customers is presumptive and illogical. Existing networks were constructed to serve the needs and long-term load growth of *all* classes of customers.³⁹ Also, arguments in favor of direct assignment seem often to assume that most of the transmission upgrades triggered by data centers are relatively near to and solely committed to serve data center loads. But this is not the case, as transmission upgrades, even when prompted in whole or part by data center interconnections can, and often do, involve significant work on integrated facilities that serve customers across wide geographic areas. Taking a forensic-like approach to cost allocation where transmission providers are compelled to quantify benefits at the level of the end user's meter, where neighboring circuits obtain vastly different outcomes would be, at best, challenging, and at worst (and more likely), entirely unworkable. Employment of such a granular level of cost

rolled-in cost allocation"); *Buckeye Power*, 148 FERC ¶ 61,174 (refusing to balkanize the grid for cost allocation purposes by voltage level).

³⁷ Many of the commenters seem confused as to the appropriate approach and take ambiguous positions. For example, Advanced Energy United states: "it is logical that both load and hybrid facilities should be responsible for 100% of the network upgrades" that are attributed to serve the load. But Advanced Energy United later purports that "Large loads should not be saddled with the full cost of the network upgrades that benefit load generally . . . Fair and equitable cost distribution and consistent processes help to maintain a reliable network and efficient queue, supporting just and reasonable rates for all customers."). Comments of Advanced Energy United, Docket No. RM26-4-000, at 24-25 (Nov. 21, 2025).

³⁸ See *Nevada Power Co. v. FPC*, 589 F.2d 1002, 1005 (9th Cir. 1979) (affirming the Commission's decision to allocate a portion of the costs of the Mojave Substation to California-Pacific Utilities Company, a system served by Nevada Power, on basis that "Nevada Power operates an integrated transmission that serves all customers, [and as] such transmission costs should be rolled-in with all other system-wide costs").

³⁹ Industrial Customer Organizations at 9 ("mandating 100% cost responsibility for all network upgrades triggered by a new large load interconnection would bring an unjust and unreasonable results in some cases, particularly where growth is methodical, planned, and fits within the existing framework, and where existing customers in the impacted utility zone are generally allocated costs of new network upgrades that benefit them.").

allocation would also fail to account for system use and topology changes that may occur during a transmission asset's decades of useful life.⁴⁰ Mandatory direct assignment cost allocation may sound good using an overly narrow time perspective,⁴¹ but in reality and in many circumstances, it will unintentionally promote free ridership on circuits serving customers who pay little for their use of the grid, resulting in avoidable cost allocation battles that may not be easily resolved.⁴² Direct assignment of network upgrade costs dramatically increases the costs to the data center and will likely reduce the number of data centers that interconnect and slow others that are sufficiently brave to weather the process. Direct assignment is a tool appropriately utilized at the state level on discrete portions of facilities that solely benefit a particular retail customer. Direct assignment, however, is not an across the board solution to large load interconnections and should neither be required nor serve as a mandate for the costs associated with network upgrades.⁴³

Direct assignment is also unlikely to address affordability, even if it seems appealing on its face. Allowing large load data center customers to exclusively fund network upgrades, and no

⁴⁰ See, e.g., *id.* (“Several manufacturers are seeking to onshore and expand facilities; however, their growth trajectory and planning tends to have a longer time horizon, without the same exact speed-to-power requirements of data centers responding to the nation’s ambitious Artificial Intelligence objectives.”).

⁴¹ See e.g., Comments of the Land Trust Alliance, Docket No. RM26-4-000, at 9 (Nov. 21, 2025) (“Placing the costs of upgrading transmission infrastructure on new large load users, such as data centers, and not on pre-existing customers, will likely reduce strain on the grid, as large load facilities would be incentivized to minimize their energy consumption. Less strain on the grid reduces the need for new transmission infrastructure, in turn protecting conserved lands from future condemnation actions. This also protects pre-existing ratepayers who are already struggling with rapidly increasing utility bills.”).

⁴² See e.g., *Pub. Serv. Co. of Indiana v. FERC*, 575 F.2d 1204 (7th Circ. 1978) (resolving a four year cost allocation dispute and affirming FERC’s finding that the transmission lines represent an integrated system and that the costs should be rolled-in with the backbone grid because they benefit all customers); see also Industrial Customer Organizations at 9-10 (“In evaluating where to make long-term investments in communities, manufacturers have relied on [the rolled-in ratemaking] approach to cost allocation for years, as it is supported by cost causation principles.”).

⁴³ *Id.* (“the ANOPR overlooks the practical and financial consequences of potentially subjecting manufacturers (who are trade-exposed, labor intensive, and price sensitive) to a mandatory large load interconnection rule in which they pay 100% of upgrade costs, even if the ensuing network upgrades benefit other customers”).

other transmission upgrades, similar to generation interconnection customers, would result in an underfunded system. Under such a construct, large load data center customers would not pay their fair share for the benefits they receive, resulting in an unlawful cost shift to other customers who have to shoulder a greater share of the costs that would otherwise be shouldered by large load customers under the Commission's rolled-in rate policy.

The better approach, and one that avoids protracted cost allocation disputes, as well as better respects jurisdictional boundaries, is to continue to apply the Commission's longstanding preference for rolled-in rate treatment as the default cost allocation methodology for large load driven network upgrades.⁴⁴ By contrast, other mechanisms, such as state retail tariffs and agreements and Commission jurisdictional obligations imposed on the wholesale transmission customer (the load-serving entity that stands between the transmission grid and the large load data center customer) are more appropriate to address concerns that large load customers pay their fair share of the associated costs.⁴⁵ To aid in this effort, transmission providers throughout the country, including some of the Indicated PJM TOs, are establishing service agreements and large load

⁴⁴ In addition to the Commission finding it just and reasonable to continue to use its rolled-in rate policy and encouraging development of service agreements that contain comprehensive consumer protection mechanisms, the Commission should clarify that just and reasonable transmission rates must, and do, include the ability of transmission owners to earn a reasonable rate of return on facilities integrated with the transmission system. The scope of such investments need not matter. No commenters argue in opposition to this approach. Therefore, any final rule should uphold these regulatory principles that are firmly grounded in the protections provided under the United States Constitution. See *FPC v. Hope Nat. Gas Co.*, 320 U.S. 591, 603 (1944); *Bluefield Waterworks & Imp. Co. v. Pub. Serv. Comm'n of W. Va.*, 262 U.S. 679, 690 (1923).

⁴⁵ The Commission may permit exceptions to its rolled-in rate policy, which it has permitted under other circumstances over time. Exceptions to the rolled-in rate policy may be reviewed on a case-by-basis and could include instances of direct assignment where such arrangements can be shown to be just and reasonable.

tariffs that provide consumer protection terms to ensure other customers are not saddled with stranded costs.⁴⁶

In their comments, Public Interest Organizations (“PIOs”) claim that recent transmission upgrades constructed to help accommodate data center load in PJM show little to no system benefit.⁴⁷ The PIOs have cherry-picked a small subset of five projects, some of which are in-service and some are not, in an attempt to establish that going-forward network upgrades driven by large load interconnections should be cost allocated as direct assignment facilities. This is not a sound basis to adopt a nationwide cost allocation policy, particularly one that involves significant risks of triggering economic regression in the manufacturing sector and stunting capital investment in the transmission grid.⁴⁸ Even within this small subset, however, PIOs’ claims regarding lack of wider system benefits are rife with errors and unsupported assertions. For example, the PIOs’ assertion that the Beaumeade STATCOM does not benefit the whole system because it is a voltage-only fix and does not improve bulk power flow or transfer capability ignores the fact that STATCOMs dynamically adjust reactive power to help maintain voltage stability across the network.⁴⁹ By regulating voltage levels, STATCOMs improve the overall power transfer capability through existing transmission lines. Additionally, the precise control of voltage and reactive power that a STATCOM offers minimizes the risk of voltage fluctuations and improves

⁴⁶ See e.g., *PECO Energy Co.*, 193 FERC ¶ 61,148, at P 32 (2025) (accepting for filing a “Transmission Security Agreement [that] includes ‘safeguards to protect consumers’ that otherwise would not exist by providing that Amazon pays PECO a sum reflecting Amazon’s minimum contribution to the transmission revenue requirement, regardless of whether the Data Center operates as anticipated or is ever built.”).

⁴⁷ See Public Interest Organizations at 32-34.

⁴⁸ See Industrial Customer Organizations at 10 (“While certain large loads may be able to commit to pay for all network system upgrades [in a direct assignment construct], such an approach would be financially devastating to manufacturers and discourage manufacturers from onshoring, engaging in redevelopment, and expanding new facilities or lines of production.”).

⁴⁹ Public Interest Organizations at 33.

overall system reliability. The PIOs also cite the Commission’s order in Docket No. ER24-2172, claiming that “PJM confirmed upgrades would be triggered [relating to an increase in co-located load at the Susquehanna Nuclear facility] above 480 MW, *with no broader system benefit.*”⁵⁰ In addition to the fact there is no current upgrade project here, nothing in the Commission’s order,⁵¹ nor the PJM transmittal letter,⁵² indicates that any such project would provide no system benefits. Further, with respect to the Kraken 500 kV loop and substation project, PJM explicitly found broader system benefits, stating that this upgrade “alleviates stability and operational constraints in the area.”⁵³

Moreover, PIOs’ presentation fundamentally misunderstands the transmission planning process in PJM, which looks at system conditions holistically, rather than planning around the incremental impacts of individual load customers. For instance, in its Reliability Analysis Report for its 2024 RTEP Window 1 solicitation process, PJM explained that its underlying analysis identified over 1,000 thermal and voltage violations, and that this large number of violations was driven by a number of factors, including both changes in load patterns as well as the impact of incoming large generation projects.⁵⁴ Thus, the resulting projects selected by PJM were driven collectively by generation and load changes throughout the PJM footprint, and not individual data centers or other customers. Also, the infrastructure expansions being driven in part by data center

⁵⁰ *Id.* at 33 (emphasis added).

⁵¹ *PJM Interconnection, L.L.C.*, 189 FERC ¶ 61,078, at P 10 (2024) (“PJM states that it has determined that any load addition in excess of 480 MW would result in generation deliverability violations and require installation of system upgrades.”).

⁵² PJM Transmittal, Docket No. ER24-2172 (filed June 3, 2024).

⁵³ PJM, *Reliability Analysis Report 2024 RTEP Window 1*, at 56 (Feb. 10, 2025), <https://www.pjm.com/-/media/DotCom/committees-groups/committees/teac/2025/20250304/20250304-2024-rtep-window-1-reliability-analysis-report.pdf#page7>.

⁵⁴ *See id.*

load have resulted in enhanced reliability and resilience system-wide to the benefit of customers.⁵⁵ Moreover, even when discrete network upgrades can be identified as facilities that would not have been necessary at this particular moment “but for” the interconnection of specific data center customers, such upgrades still often provide grid-wide benefits, such as addressing end-of-life or operational performance issues that would ultimately need to be addressed, and paid for by all network customers, absent the data center interconnection.

Some commenters raise concerns that existing retail rate protections are insufficient to protect wholesale customers from large load interconnections. For instance, Buckeye Power states that “[a]lthough these large loads may be retail customers, they have significant impacts on Commission jurisdictional transmission rates and risk significant cost shifts to other wholesale transmission customers.”⁵⁶ However, as Buckeye Power acknowledges, these concerns are being addressed by transmission providers, including the Indicated PJM TOs, in the terms and conditions of recent large load service agreements. These include minimum charges, early termination fees and other mechanisms that will, if triggered, act to offset wholesale transmission revenue requirements.⁵⁷ These mechanisms serve to protect both retail and wholesale customers from cost shifts and stranded costs, and can comfortably co-exist with the Commission’s longstanding policy of rolled-in rate treatment for integrated transmission upgrades. As such, the Commission should instead consider encouraging transmission providers to develop and submit for filing large load service agreements that contain comprehensive customer protection mechanisms like those

⁵⁵ See *supra* Section II.C (discussing PJM’s RTEP process and the Indicated PJM TOs’ response to the PIOs’ claims).

⁵⁶ Buckeye Power at 2.

⁵⁷ See *id.* at 26-27; see also *PECO Energy Co.*, 193 FERC ¶ 61,148.

mentioned in Buckeye Power’s comments, rather than adopt a general rule requiring the direct assignment of network upgrades.⁵⁸

The Indicated PJM TOs do not, however, agree with the alternative proposal to hold the “wholesale transmission entity responsible for the network upgrade costs caused by the large load it has a direct relationship with.”⁵⁹ This proposal has the same flaws as direct assignment, insofar as it ignores the fact that integrated transmission upgrades provide system-wide benefits to other wholesale transmission customers (and in turn their end-use customers), not just to the wholesale transmission customer that will serve the new large load data center customer.

D. No Commenters Provide a Compelling Rationale for Providing Load Customers an Option to Build.

Some commenters support the ANOPR’s proposal to provide large load customers the same or equivalent option to build as is currently provided to generator interconnection customers.⁶⁰ Certain of the commenters that support the option to build frame their support on the basis that providing an option to build would promote data center speed-to-power goals and be more efficient and cost-effective.⁶¹ However, as explained by the Indicated PJM TOs and other transmission-owning entities, experience with generator interconnections, as well as a recognition of the differences between generators and load customers, demonstrates otherwise.⁶²

⁵⁸ Buckeye Power at 26-28.

⁵⁹ *Id.* at 22-23.

⁶⁰ *See, e.g.*, Comments of RWE Clean Energy, Inc., Docket No. RM26-4-000 at 9 (Nov. 21, 2025), Comments of FuelCell Energy, Inc., Docket No. RM26-5-000, at 6 (Nov. 21, 2025); Comments of Constellation Energy Generation, LLC, Docket No. RM26-4-000, at 26-27 (Nov. 21, 2025); CAISO at 14; Public Interest Organizations at 35; PA and DE Advocates at 27.

⁶¹ *See e.g.*, Advanced Energy United at 25.

⁶² *See* MISO TOs at 28; New York TOs at 17-18; Comments of ITC Holdings Corp., Docket No. RM26-4-000, at 5 (Nov. 21, 2025); Comments of PPL Corporation, Docket No. RM26-4-000, at 14-15 (Nov. 21, 2025); Comments of Southwest Power Pool Transmission Owner Group, Docket No. RM26-4-000, at 8-9 (Nov. 21, 2025); Comments of the Midcontinent Independent System Operator, Inc., Docket No. RM26-4-000, at 26 (Nov. 21, 2025).

Constructing transmission upgrades—including direct connect facilities and stand alone upgrades, the facilities subject to option to build today—requires significant expertise to ensure that such facilities will operate safely and reliably. Implementing an option to build, even in the context of generators that are electric utilities, has required transmission owners to develop robust safeguards and other supervisory procedures to ensure that these objectives are achieved. When factoring in these additional requirements, any potential efficiencies or cost savings are rendered *de minimis* or non-existent. Indeed, when taking into account the magnitude of infrastructure upgrades that could be driven by data center load additions over the next several years, requiring transmission owners to expend significant resources to supervise the design, engineering, and construction of customer-built facilities could end up working at odds with the goals of efficiency and cost-effectiveness. This is because the activities necessary to safely and reliably implement an option to build may require more time and effort from these personnel than would be the case if they were tasked with designing and constructing these facilities themselves, as they are trained to do.

Given the significant expertise needed to ensure these facilities can be operated safely and reliably, providing an option to build for large load customers is also particularly problematic because it is the transmission owners and their affiliates who bear the responsibility, and associated liability, to operate and maintain network transmission facilities.⁶³ This is the case both in terms of compliance with NERC standards as well as the fact that utilities have state-mandated obligations to serve all retail loads. This raises issues of basic equity and fairness. It also risks

⁶³ Again, this principle appears to assume that most of the work required to interconnect large load customers will be transmission-related, when in fact in most cases distribution-level work will also be required. So another risk of permitting large load customers an option to build is that it could create inconsistency with state-jurisdictional procedures relating to local distribution upgrades.

creating unnecessary complexity and confusion if an issue arises regarding the reliability of a facility constructed by a load customer.

A few commenters also argue that affording an option to build to large load customers would avoid discriminating against large load customers relative to generation customers.⁶⁴ This is incorrect. Load is not competing with generation for access to the system and is therefore not similarly situated to generation. Load, on the other hand, wishes for more generation to connect to the system, therefore, there is no prospect for unduly discriminatory conduct or treatment between load and generation. As the Indicated PJM TOs and other commenters point out, there are good, non-discriminatory reasons for distinguishing between generators and load customers, not the least of which is the fact that, at a minimum generators are governed by NERC reliability standards while at least at present, load customers are not.

E. Netting On-Site Load and Generation Risks Shifting Significant Costs to Other Retail Customers

A number of commenters express support for Principle 5 in the ANOPR, which proposes studying load and generation from hybrid large load facilities together based on a facility's requested injection and withdrawal rights, *i.e.*, on a "net" basis.⁶⁵ Many of these commenters also agree that there should not be undue impacts, particularly cost impacts, on other customers. However, as the Indicated PJM TOs and other commenters with experience planning transmission point out, on-site load and generation need to be studied at their full amounts to ensure reliable interconnection.⁶⁶ In addition to reliability concerns, the failure to fully study load and generation

⁶⁴ Public Interest Organizations at 35.

⁶⁵ *See, e.g.*, Comments of ENGIE North America, Inc., Docket No. RM26-4-000, at 8 (Nov. 21, 2025); Comments of Tesla, Inc., Docket No. RM26-4-000, at 2 (Nov. 21, 2025); Public Interest Organizations at 24.

⁶⁶ *See, e.g.*, Indicated PJM TOs at 36-37.

from hybrid facilities could lead to substantial adverse cost consequences to other retail and wholesale customers. For instance, if a hybrid facility with 500 MW load and 600 MW of generation is only studied as a 100 MW generator, and the generator goes offline, the facility will need to rely on 500 MW of load served by generation and transmission from the system. This, of course, raises substantial reliability concerns, but it also threatens cost shifts to other customers relating to the facilities and services needed to ensure the hybrid customer's full on-site load can be served without threatening system stability. This concern will be even more acute if the Commission elects to require direct assignment of network upgrade costs, and limits the "but for" upgrade costs for which the customer is responsible to those necessary to accommodate only the "net" amount of requested withdrawal or injection rights.

III. CONCLUSION

The Indicated PJM TOs appreciate the opportunity to submit reply comments on the ANOPR, and respectfully request that the Commission act in accordance with these reply comments, as well as the Indicated PJM TOs' initial comments.

Respectfully submitted,

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December 5, 2025